Responsible Administrator: VP Admin/Finance
Responsible Office: Human Resources
Effective Date: 06/30/2014
Approved by: President
Date Reviewed (no substantive changes): 10/29/2024

Grievance Policy

Policy Statement

A grievance is a complaint involving the work situation including, but not limited to, salary; working conditions; a lack of policy; a policy or practice that is perceived as improper or unfair; a deviation from, misrepresentation of, or misapplication of practice or policy; a violation, misrepresentation, misapplication or an inequitable or otherwise improper application of rules or regulations of the University of Louisiana System, Southeastern, division, college or department; and any agreement between the University and the individual employee.

No reprisal will be made by the Board or the University against any grievant, witness, representative, or any other participant in a grievance procedure by reason of such participation. All written materials pertinent to a grievance will be filed separately from the personnel and/or evaluation files of the grievant and all other participants.

Purpose of Policy

All problems should be resolved whenever possible, before filing of a grievance. Open communication between administrators and employees is encouraged so that a formal grievance procedure will not normally be necessary. However, as a means of maintaining a satisfied and efficient work force, an employee who feels that he or she has been treated unjustly has the right to file and pursue a grievance free from interference, coercion, restraint, discrimination, or reprisal.

The grievant may be advised by counsel. The burden to prove any allegation of unfair treatment rests on the grievant. The grievant must set forth in detail the nature of the grievance and shall state against whom/what the grievance is directed. It shall contain any facts or other data which the petitioner deems pertinent to the case.

Applicability

This policy applies to unclassified staff, graduate assistants, and resident assistants.

Policy Procedure

Step One

A written statement of grievance will be presented to the grievant's immediate supervisor within ten (10) working days after the incident that caused the grievant to be aggrieved.

The immediate supervisor will meet with the grievant within five (5) working days and respond in writing to the grievant within five (5) working days thereafter. The meeting should not disrupt work assignments of either and should be arranged at a mutually convenient time for each.

If the grievance cannot be resolved under the immediate supervisor's authority, then the immediate supervisor will indicate such on the form and return it to the grievant. The grievant may then proceed to Step 2.

Step Two

If not satisfied with the decision of the immediate supervisor, or if the immediate supervisor does not have the authority to resolve the grievance, then the grievant may within five (5) working days of the receipt of such decision, submit the grievance in writing to the department head, if applicable. If not applicable, proceed to Step Three.

The department head will meet with the grievant within five (5) working days, render a decision, and respond in writing within five (5) working days thereafter.

Step Three
If not satisfied with the decision of the department head, or if there is no department head in the chain of command, then the grievant may within five (5) working days of the receipt of such decision, submit the grievance in writing to the appropriate dean, director, or assistant vice president, as applicable.

The dean, director, or assistant vice president will meet with the grievant within five (5) working days, render a decision, and respond in writing within five (5) working days thereafter.

Step Four
If not satisfied with the decision of the dean, director, or assistant vice president, then the grievant may within five (5) working days of the receipt of such decision, submit the grievance in writing to the appropriate vice president. If there is not vice president in the chain of command, the grievant may proceed to Step 5 and submit the grievance directly to the President.

The Vice President will conduct a hearing within five (5) working days, render a decision, and respond in writing within five (5) working days thereafter.

Step Five
If not satisfied with the decision of the vice president, or if there is no vice president in the chain of command, the grievant may within five (5) working days of the receipt of such a decision submit the grievance to the President of the University.

The President will appoint a committee, as needed, of no more than five employees to hear the grievance. The committee will hold a hearing within five (5) working days of the receipt of the grievance by the President and make a recommendation to the President regarding the grievance. The President of the University will render a decision and respond in writing within five (5) working days thereafter.

Step Six
If not satisfied with the decision of the President of the University, the grievant may submit an appeal in writing to the President of the University of Louisiana System for review by the Board Grievance Committee. The grievant shall furnish a copy of the appeal to the President of the University for his/her information.

SUMMARY DISPOSITION OF A GRIEVANCE
At any time after the filing of a grievance in writing, an appointing authority may summarily dispose of the grievance for any reasons listed below.

- The appointing authority lacks jurisdiction on the subject matter, or of the person against whom relief is sought.
- The aggrieved has no legal right to grievance consideration.
- The grievance has not been made in the required manner or within the prescribed period of delay.
- A decision on the grievance would be ineffective.
- The aggrieved has failed to appear at the time and place fixed for the hearing of his/her grievance.
- The aggrieved has withdrawn or abandoned his/her request for grievance consideration.

When an appointing authority summarily disposes of a written grievance, he/she shall notify all parties involved in writing.

[End of Policy]

The employee must present the grievance to his immediate supervisor within ten (10) working days after the incident or after he has received written notice of the incident. The original form when completed must be placed on file in the Human Resources Office.

AGENCY_____ DATE_____

NAME_____ TITLE_____

GRIEVANCE STATEMENT

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_____

RELIEF SOUGHT

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Grievant's Signature: _____ Date:_____

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STEP ONE - Supervisor

The immediate supervisor will conduct a hearing within five (5) working days and respond in writing to the employee within five (5) working days thereafter.

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Signature: _____ Date:_____

Employee Answer: (Initial and date by appropriate response.)
_____ I am satisfied with the answer to my grievance.
_____ I am **not** satisfied with the answer to my grievance and wish to have it referred to the next step.

If not satisfied with the decision of the immediate supervisor, the grievant may within five (5) working days of the receipt of such decision, submit the grievance in writing to their department head. If there is no department head, proceed to Step Three.

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STEP TWO – Department Head

The department head will conduct a hearing within five (5) working days of receipt of the grievance, render a decision, and respond in writing within five (5) working days thereafter.

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Signature: _____ Date:_____

Employee Answer: (Initial and date by appropriate response.)

_____ I am satisfied with the answer to my grievance.
_____ I am **not** satisfied with the answer to my grievance and wish to have it referred to the next step.

If not satisfied with the decision of the department head, then the grievant may within five (5) working days of the receipt of such decision, submit the grievance in writing to the appropriate dean, director, or assistant vice president.

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STEP THREE – Dean, Director, or Assistant Vice President

The dean, director, or assistant vice president will conduct a hearing within five (5) working days of receipt of the grievance, will render a decision, and respond in writing within five (5) working days thereafter.

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Signature: _____ Date:_____

Employee Answer: (Initial and date by appropriate response.)
_____ I am satisfied with the answer to my grievance.
_____ I am **not** satisfied with the answer to my grievance and wish to have it referred to the next step.

If not satisfied with the decision of the dean, director, or assistant vice president, then the grievant may within five (5) working days of the receipt of such decision, submit the grievance in writing to the appropriate Vice President.

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STEP FOUR – Vice President

The Vice President will conduct a hearing within five (5) working days of receipt of the grievance, render a decision, and respond in writing within five (5) working days thereafter.

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Signature: _____ Date:_____

Employee Answer: (Initial and date by appropriate response.)
_____ I am satisfied with the answer to my grievance.
_____ I am **not** satisfied with the answer to my grievance and wish to have it referred to the next step.

If not satisfied with the decision of the Vice President, then the grievant may within five (5) working days of the receipt of such decision, submit the grievance in writing to the President of the University.

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STEP FIVE - President

The President will appoint a committee, as needed, of no more than five employees made up of a cross-section of unclassified staff to hear the grievance. The committee will hold a hearing within five (5) working days of receipt of the grievance by the President and make a recommendation to the President regarding the grievance. The President of the University will then render a decision in writing within five (5) working days thereafter.

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Signature: _____ Date:_____

Employee Answer: (Initial and date by appropriate response.)

_____ I am satisfied with the answer to my grievance.

_____ I am **not** satisfied with the answer to my grievance and wish to have it referred to the next step.

If not satisfied with the decision of the President of the University, the grievant may submit an appeal in writing to the President of the University of Louisiana System for review by the Board Grievance Committee. A copy of the appeal shall be furnished to the President of the University for his/her information.

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No reprisal will be made by the Board or the University against any grievant, witness, representative, or any other participant in a grievance procedure by reason of such participation. All written materials pertinent to a grievance will be filed separately from the personnel and/or evaluation files of the grievant and all other participants.

Note: At any time after the filing of a grievance in writing, an appointing authority may summarily dispose of the grievance. When an appointing authority summarily disposes of a written grievance, he/she shall notify all parties involved in writing.